

FEDERAL MARITIME COMMISSION

Docket No. 17-09

FIAT CHRYSLER AUTOMOBILES NV, FCA US LLC, AND FCA ITALY S.P.A.

v.

**WALLENIOUS WILHELMSSEN LOGISTICS AS, WALLENIOUS WILHELMSSEN
LOGISTICS AMERICAS LLC, EUKOR CAR CARRIERS INC.,
NIPPON YUSEN KABUSHIKI KAISHA, NYK LINE (NORTH AMERICA) INC.,
MITSUI O.S.K. LINES, LTD., MOL (AMERICA) INC.,
KAWASAKI KISEN KAISHA, LTD., "K" LINE AMERICA, INC.,
COMPAMA SUD AMERICAN DE VAPORES S.A., AND HOEGH AUTOLINERS AS**

**MITSUI O.S.K. LINES, LTD. AND MOL (AMERICA) INC.'S
OPPOSITION TO RESPONDENTS WALLENIOUS WILHELMSSEN LOGISTICS AS,
WALLENIOUS WILHELMSSEN LOGISTICS AMERICAS LLC, AND EUKOR CAR
CARRIERS INC.'S MOTION FOR CLARIFICATION OF THE CONFIDENTIALITY
PROVISIONS OF THE APRIL 2, 2019 ORDER AND INITIAL DECISION APPROVING
A CONFIDENTIAL SETTLEMENT**

On April 2, 2019, the Presiding Judge issued an Order and Initial Decision approving Complainants Fiat Chrysler Automobiles NV, FCA US LLC, and FCA Italy S.P.A (collectively, “FCA”) and Respondents Mitsui O.S.K. Lines, Ltd. and MOL (America) Inc.’s (collectively, “MOL”) joint motion for: (1) approval of the Confidential Settlement Agreement and Release (the “Settlement Agreement”); (2) dismissal of the Complaint against MOL with prejudice; and (3) an order that the Settlement Agreement be held confidentially by the Presiding Judge and the Commission and barred from public view or disclosure.

On April 10, 2019, Respondents Wallenius Wilhelmsen Logistics AS, Wallenius Wilhelmsen Logistics Americas LLC, and Eukor Car Carriers Inc. (collectively,

“WWL/EUKOR”) filed an Amended Motion and Consolidated Memorandum for Clarification of the Presiding Judge’s April 2 Order and Initial Decision. In their motion, WWL/EUKOR argue that the confidentially that the Presiding Judge ordered with respect to the Settlement Agreement should not extend to WWL/EUKOR because they are entitled to a set-off of any payments made by a settling respondent.

MOL joins FCA’s Brief in Opposition. For the reasons provided in FCA’s Brief in Opposition to WWL/EUKOR’s Motion for Clarification, filed on the same day as this Opposition, April 17, 2019, WWL/EUKOR’s motion is premature and should be denied at this point, without prejudice.

Dated: April 17, 2019

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that I served the foregoing document on all parties of record by electronic mail.

DATED: April 17, 2019

/s/ James L. Cooper
James L. Cooper